

STATE OF NEW YORK

7924--A

2025-2026 Regular Sessions

IN ASSEMBLY

April 15, 2025

Introduced by M. of A. PRETLOW, ZINERMAN -- read once and referred to the Committee on Economic Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to the practice of natural hair care and braiding

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The article heading of article 27 of the general business law, as added by chapter 509 of the laws of 1992, is amended to read as follows:

LICENSING OF NAIL SPECIALTY, NATURAL
HAIR [~~STYLING~~] CARE AND BRAIDING,
ESTHETICS AND COSMETOLOGY

§ 2. Subdivisions 3 and 5 of section 400 of the general business law, subdivision 3 as added by chapter 509 of the laws of 1992 and subdivision 5 as amended by chapter 343 of the laws of 1998, are amended to read as follows:

3. "Licensee" means a person licensed pursuant to this article to engage in the practice of natural hair [~~styling~~] care and braiding, esthetics, nail specialty or cosmetology, or to operate an appearance enhancement business in which such practice, as herein defined, is provided to the public.

5. a. The practice of "natural hair [~~styling~~] care and braiding" means providing for a fee, or any consideration or exchange, whether direct or indirect, any of the following services to the hair of a human being: with all ranges of hair types and textures, consulting and scalp analysis, hair texture assessment, shampooing, conditioning, providing clean, botanical and sustainable beauty products which include clarifying and moisturizing shampoos, leave-in conditioners and steam hydration conditioning, scalp treatments, wellness practices, hydration and protein

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

LBD07619-08-5

strengthening treatments, clays, masks, essential oils, and herbal/botanical rinses, arranging, dressing, twisting, coiling, wrapping, weaving, extending, locking, palm rolling or braiding the hair or beard by either hand or mechanical [appliances] equipment, including using clips, combs, brushes, crochet needles, latch-hook tools, interlocking tools, sewing blunt-tipped and curve needles, beading pliers, curlers, rods, rollers, hairpins, scissors, thread and yarn for styling natural textured hair or braids on all ranges of hair types and textures.

b. Such practice shall not include cutting, shaving or trimming natural hair except that such activities are permissible to the extent that such activities are incidental to the practice of minor hair shaping or trimming of naturally textured hair after the installation and finishing of braid hair extensions, natural hair styling, and natural hair braiding.

c. Such practice shall not include the application of dyes, reactive chemicals, or other preparations to alter the color or to straighten, curl, or permanently alter the structure of the hair with chemicals or heat. Techniques which result in tension on hair roots such as certain types of braiding, weaving, wrapping, locking and extending of the hair may only be performed by a natural hair [styling] care and braiding licensee or cosmetology licensee who has successfully completed an approved course of study in such techniques.

§ 3. Section 400 of the general business law is amended by adding nine new subdivisions 5-a, 5-b, 5-c, 5-d, 5-e, 5-f, 5-g, 5-h and 5-i to read as follows:

5-a. "Natural hair" means all hair types and textures that grow from the scalp with a natural curl, coil, wave or wiry pattern of the hair.

5-b. "Natural hair care" means the maintenance and overall care performed by a natural hair care specialist, a braider or a natural hair care or braiding apprentice dedicated to the health and wellness of one's hair and scalp through proper tension techniques and without the use of chemicals or the alteration of the structure of the hair.

5-c. "Textured hair" means textured hair types, including curly, coily, tight coily, afro coily, straight and wavy, including, but not limited to, various curly, coily, wavy or wiry patterns, combinations and configurations, hair strands, thickness, and volumes of hair.

5-d. "Textured styles" or "textured hair styling" means a design created on natural hair that incorporates varying patterns to create depth, dimension and visual texture using specific styling practices and techniques for hair care of all hair types and textures, specifically, curly, coily and afro coily hair, performed by a textured hairstylist or specialist who is licensed in natural hair care or cosmetology, including arranging, dressing, curly and coily styling, comb coiling, finger coiling, double strand twisting, flat-twisting or the use of curlers, rods, rollers/hairpins including the preparation of the foundation of the hair through wellness practices in order to preserve the health of the hair with botanical beauty products which include clarifying and moisturizing shampoos, leave-in conditioners, steam hydration conditioning, hydration and protein strengthening treatments, and herbal/botanical rinses; and topical agents such as gels and gelee, hairspray, foams, mousse, molding muds, moisturizers, oils, pomades, in conjunction with performing the practice of natural hair care and braiding. Such styling shall include the use of blow dryers and diffusers for the purpose of drying natural textured styles with indirect heat.

1 5-e. "Braid" means the interlacing of three or more strands of hair,
2 and can be worn in a variety of styles, including cornrows, twists,
3 locs, and box braids with or without added hair fibers.

4 5-f. "Braiding" means the styling practices and techniques performed
5 by a braid specialist, an individual who specializes in creating hair-
6 styles utilizing braiding techniques on all hair types and textures
7 which includes the use of natural human hair or synthetic hair
8 extension/fibers, natural human hair and synthetic blended fibers, deco-
9 orative beads, and other hair adornments. Minor hair shaping or trimming
10 of natural hair or hair extensions necessary for finishing braid hair
11 extensions may occur. Braiding types and techniques can include, but
12 are not limited to, individual box braids, knotless/feed-in braids,
13 cornrows, stitch cornrows, casamas, plaits, Bantu Knots, or Senegalese
14 Twists.

15 5-g. "African braiding" refers to the cultural reference of tradi-
16 tional techniques of naturally braiding and cornrowing hair, originating
17 from African communities within the African diaspora.

18 5-h. "Locking" or "loc extensions" includes, but is not limited to,
19 wrapping the hair, palm rolling techniques, grooming, interlocking,
20 crochet locking, micro/locking by a locician, an individual who is
21 knowledgeable in the practices and techniques of locking all hair types
22 and textures, and installing loc extensions including the preparation of
23 the foundation of the hair through wellness practices in order to
24 preserve the health of the hair with botanical beauty products which
25 include clarifying and moisturizing shampoos, leave-in conditioners, and
26 steam hydration conditioning treatments, hydration and moisturizing
27 techniques, protein strengthening treatments, and herbal/botanical rins-
28 es; and topical agents such as gels and gelee, hairspray, foams, mousse,
29 molding muds, moisturizers, oils, pomades, in conjunction with perform-
30 ing the practice of natural hair care and braiding.

31 5-i. "Weaving" and "extensions" means extending natural hair with the
32 addition of braids, locs or additional textured hair with human hair,
33 synthetic fibers, and hair extension; the making of wigs from human
34 hair, synthetic fibers, and hair extensions including the preparation of
35 the foundation of the hair through wellness practices in order to
36 preserve the health of the hair with botanical beauty products which
37 include clarifying and moisturizing shampoos, leave-in conditioners, and
38 steam hydration conditioning treatments, hydration and moisturizing
39 techniques, protein strengthening treatments, and herbal/botanical rins-
40 es; and topical agents such as gels and gelee, hairspray, foams, mousse,
41 molding muds, moisturizers, oils, pomades, in conjunction with perform-
42 ing the practice of natural hair care and braiding.

43 § 4. Subdivisions 1 and 3 of section 401 of the general business law,
44 subdivision 1 as amended by chapter 80 of the laws of 2015 and subdivi-
45 sion 3 as amended by chapter 341 of the laws of 1998, are amended and a
46 new subdivision 4 is added to read as follows:

47 1. No person shall engage in the practice of nail specialty, waxing,
48 natural hair [~~styling~~] care and braiding, esthetics or cosmetology, as
49 defined in section four hundred of this article, without having received
50 a license to engage in such practice in the manner prescribed in this
51 article. No person shall act as a trainee or perform any service as such
52 unless [~~he or she~~] such person has obtained a certificate of registra-
53 tion pursuant to this article.

54 3. A person licensed by any other state or country to practice nail
55 specialty, waxing, natural hair [~~styling~~] care and braiding, esthetics
56 or cosmetology shall be allowed to practice in New York state for three

1 months or less within any calendar year for the purpose of giving to, or
2 receiving from, persons who are licensed under this article training in
3 current styles, techniques or materials, provided however, that no such
4 unlicensed person may provide services to the public for any fee, or
5 other compensation, whether direct or indirect.

6 4. Notwithstanding the provisions of this section, an unlicensed
7 person practicing natural hair care and braiding in the state of New
8 York or any other state or country for at least five years shall be
9 permitted to apply for a temporary license for a one-year period that
10 allows applicants to be employed at an appearance enhancement business
11 under the supervision of a licensed natural hairstylist or cosmetolo-
12 gist. Such applicants shall be issued such temporary license after
13 providing evidence of such required work experience in a form approved
14 by the department. After such temporary license has been issued, such
15 applicants shall be required to fulfill educational requirements in-per-
16 son, on-line or through a hybrid course of study from an accredited
17 school approved by the New York state division of licensing services
18 including eighty theory and twenty practical credits, totaling one
19 hundred hours of natural hair care and braid styling course curriculum
20 in infection and bacteriology, alopecia and scalp disorders and
21 diseases, salon health and safety protocols, the science of sanitary
22 practices, ergonomics for overall health and safety, domestic violence
23 and human trafficking, natural hair care and braiding technical theory
24 and practical examination preparation. Upon completion of the educa-
25 tional requirements under this section, and all other mandatory require-
26 ments, the individual shall be eligible to apply to take a New York
27 state natural hair and braiding practical examination. Upon passing such
28 examination, such individual shall receive a natural hair care and
29 braiding license. Additionally, applicants with prior braid expertise
30 otherwise qualified under this subdivision shall provide two certified
31 letters of recommendation by clients, employees, and/or coworkers, two
32 images and one video of such applicant's braiding work. Such temporary
33 license may be renewed for an additional year if such applicant is in
34 the process of completing additional educational certification. The
35 secretary shall promulgate rules and regulations with input from the
36 advisory committee established under section four hundred three of this
37 article to ensure such licensing.

38 § 5. Section 404 of the general business law, as amended by chapter
39 664 of the laws of 2023, is amended to read as follows:

40 § 404. Rules and regulations. The secretary shall promulgate rules and
41 regulations which establish standards for practice and operation by
42 licensees and trainees under this article in order to ensure the health,
43 safety and welfare of the public including licensees and trainees when
44 they are working within such establishments. Such rules and regulations
45 shall include, but not be limited to, the sanitary conditions and proce-
46 dures required to be maintained, a minimum standard of training appro-
47 priate to the duties of nail specialists, trainees, waxers, natural hair
48 [~~stylists~~] care and braiding specialists, estheticians, and cosmetolo-
49 gists and the provision of service by nail specialists, trainees,
50 waxers, natural hair [~~stylists~~] care and braiding specialists, estheti-
51 cians or cosmetologists at remote locations other than the licensee's
52 home provided that such practitioner holds an appearance enhancement
53 business license to operate at a fixed location or is employed by the
54 holder of an appearance enhancement business license. Regulations
55 setting forth the educational requirements for nail specialists and
56 trainees shall include education in the area of causes of infection and

1 bacteriology. Regulations setting forth the educational requirements for
2 cosmetologists [~~or~~], natural hair [~~stylists~~] care and braiding special-
3 ists and natural hair care and braiding apprentices shall include educa-
4 tion regarding the provision of services to individuals with all hair
5 types and textures, including, but not limited to, various curl, coil or
6 wave patterns, hair strand thicknesses, and volumes of hair. Addi-
7 tionally, such regulations for natural hair care and braiding special-
8 ists and natural hair care and braiding apprentices shall include educa-
9 tion in the area of natural hair care and braid techniques, cause of
10 infection and bacteriology, alopecia and scalp disorders and diseases,
11 salon health and safety protocols, the science of sanitary practices and
12 ergonomics for overall health and safety. In promulgating such rules and
13 regulations the secretary shall consult with the state education depart-
14 ment, the advisory committee established pursuant to this article, any
15 other state agencies and private industry representatives from beauty
16 schools and academies as may be appropriate in determining minimum
17 training requirements.

18 § 6. Section 406 of the general business law, as added by chapter 509
19 of the laws of 1992, subdivisions 1, 2 and 4 as amended by chapter 341
20 of the laws of 1998, paragraph e of subdivision 1 as amended by chapter
21 376 of the laws of 2015, paragraph f of subdivision 1 as added by chap-
22 ter 80 of the laws of 2015, paragraph c of subdivision 2 as amended by
23 section 3 of part D of chapter 328 of the laws of 2014 and paragraph a
24 of subdivision 3 as amended by chapter 324 of the laws of 1998, is
25 amended to read as follows:

26 § 406. License application; procedure; requirements; temporary
27 license. 1. a. Any person intending to practice nail specialty, waxing,
28 natural hair [~~styling~~] care and braiding, esthetics or cosmetology as
29 defined in this article, or to own or operate an appearance enhancement
30 business, shall first make application to the secretary for a license
31 therefor.

32 b. Such application shall be in a form and manner prescribed by the
33 secretary and shall contain such information as, in the secretary's
34 judgment, is reasonable and necessary to determine the qualifications
35 and fitness for licensing of the applicant.

36 c. The application shall be subscribed by the applicant and affirmed
37 under penalty of perjury.

38 d. Each application shall be accompanied by the appropriate fee as
39 prescribed by this article.

40 e. Each application shall be accompanied by a certificate of a duly
41 licensed physician, or nurse practitioner to the extent authorized by
42 law and consistent with subdivision three of section six thousand nine
43 hundred two of the education law on a form prescribed by the secretary,
44 showing freedom from any infectious or communicable disease which
45 certificate shall have been issued within thirty days prior to the date
46 of the filing of the application.

47 f. Notwithstanding the educational requirements of this section, a
48 trainee may obtain a license to practice nail specialty if such trainee
49 provides satisfactory evidence to the secretary that such trainee has
50 been actively engaged in a traineeship for a period of one year and has
51 completed a course of study set forth by the secretary. Such course of
52 study may be delivered by electronic means.

53 2. a. Any person seventeen years of age or older may apply to the
54 secretary for a license to practice nail specialty, waxing, natural hair
55 [~~styling~~] care and braiding, esthetics or cosmetology.

b. Each such application shall also be accompanied by satisfactory evidence of having taken and passed the appropriate examination or examinations offered by the secretary pursuant to this article for the license sought and evidence of the successful completion of an approved course of study in nail specialty, waxing, natural hair ~~[styling]~~ care and braiding, esthetics or cosmetology in a school duly licensed pursuant to the education law.

c. Any applicant for a license to practice nail specialty, waxing, natural hair ~~[styling]~~ care and braiding, esthetics or cosmetology may submit satisfactory evidence of licensure to practice an equivalent occupation issued by any other state, territory, protectorate or dependency of the United States or any other country in lieu of the evidence of schooling and examination required by this subdivision, provided that such license was granted in compliance with standards which were, in the judgment of the secretary, not lower than those of this state and provided that such state, territory, protectorate, dependency, or country extends similar reciprocity to the licensees of this state, or the applicant practiced an equivalent occupation in such state, territory, protectorate, dependency or country for a minimum of five years, or the applicant is a member of the household of a member of the armed forces of the United States, national guard or reserves and was a member of such household before such member relocated to the state.

d. Notwithstanding the educational requirements of this section and the testing requirements of this section, an applicant who otherwise has met the licensing requirements of this article for a nail specialist, waxer, natural hair ~~[stylist]~~ care and braiding specialist, esthetician or cosmetologist who shall provide satisfactory evidence ~~[he or she has]~~ they have been actively and continuously engaged in the practice of nail specialty, waxing, natural hair ~~[styling]~~ care and braiding, esthetics or cosmetology for at least one year prior to the effective date of this article, may be issued a license for nail specialty, waxing, natural hair ~~[styling]~~ care and braiding, esthetics or cosmetology pursuant to this article. Notwithstanding the educational and testing requirements of this section, a person licensed to practice barbering under article twenty-eight of this chapter who otherwise has met the licensing requirements of this article may apply for a temporary natural hair care and braiding license in order to study and take the natural hair care and braiding written examination. Upon passing, such licensed barber shall be issued a license to practice natural ~~[hairstyling]~~ hair care and braiding. Other than applicants licensed under article twenty-eight of this chapter, those persons who apply after a twelve month period from the effective date of this article will be required to provide evidence of training and to take the examination or examinations as required for other licenses pursuant to this article.

e. Upon acceptance by the secretary of a proper application for an operator's license to practice nail ~~[specialty]~~ specialty, waxing, natural hair ~~[styling]~~ care and braiding, esthetics or cosmetology, the secretary may issue a temporary operator's license which shall expire six months from issuance. Upon good cause shown, the secretary may renew a temporary operator's license for one additional six-month period upon filing the appropriate application and fee.

3. Appearance enhancement business license. a. Any person, eighteen years of age or older, or any firm, limited liability company, partnership or corporation having at least one member eighteen years of age or older may apply to the secretary for an appearance enhancement business license.

b. Each such application for an appearance enhancement business license shall be accompanied by evidence of a bond or liability insurance.

4. a. Notwithstanding any provision contained in this article to the contrary, if any person, eligible for any license pursuant to this article, should be called to active military service at or during the time application for any license is required to be filed and license fee paid, pursuant to the provisions of this article, the period within which said application may be filed and license fee may be paid, is extended on behalf of such person, until three months after the termination of said military service.

b. In the case of persons who are called to active military service and will be discharged from active military service, the period of two years specified in paragraph d of subdivision two of this section need not be continuous. The length of time such person was engaged in the practice of nail specialty, waxing, natural hair ~~[styling]~~ care and braiding, esthetics or cosmetology before entering active military service may be added to any period of time during which such person was or is engaged in the practice of nail specialty, waxing, natural hair ~~[styling]~~ care and braiding, esthetics or cosmetology after the termination of active military service.

§ 7. Subdivision 1 of section 407 of the general business law, as amended by chapter 255 of the laws of 1999, is amended to read as follows:

1. The examinations for the license to practice natural hair ~~[styling]~~ care and braiding, esthetics, nail specialty and cosmetology shall be practical and written. The examinations for the license to practice waxing shall be limited to a written examination only. The secretary shall determine reasonable standards of performance for each license and shall evaluate the prospective applicants and applicants on the basis of such standards. The objectives of the examinations shall be to ~~[insure]~~ ensure that prospective applicants and applicants have sufficient basic skills to safeguard the health and safety of the public and to insure that prospective applicants and applicants have attained adequate levels of skill to competently engage in the activities authorized by the license.

§ 8. Section 408 of the general business law is amended by adding a new subdivision 12 to read as follows:

12. Any current natural hair styling licensee who processes a renewal after the effective date of this subdivision shall receive the updated natural hair care and braiding license pursuant to this article.

§ 9. The general business law is amended by adding two new sections 408-c and 408-d to read as follows:

§ 408-c. Natural hair care and braiding apprentice. 1. A natural hair care and braiding apprentice shall be a beginner and non-professional individual seventeen years of age or older with less than two years experience that wants to enter the natural hair care and braiding industry and receive hands-on training. Such person shall be pursuing in good faith a one-year hands-on paid work study apprenticeship program in the practice of natural hair care and braiding under the tutelage, supervision, and direction of a natural hair care and braiding licensee who is a senior natural hair care and braiding specialist pursuant to section four hundred eight-d of this article who assists such licensee in such practice. A business appearance enhancement licensed salon shall register with the division of licensing services to participate in such apprentice program. Such business appearance enhancement salon shall

1 hire such apprentice in a full or part time capacity for a minimum of
2 twenty hours to a maximum of forty hours per week to participate in such
3 apprentice program. The secretary shall promulgate rules and regulations
4 regarding salons and salon supervisors, for tutelage, guidelines and
5 requirements of natural hair care and braiding instructors and textured
6 hairstylist instructors. The advisory committee established under this
7 article shall advise the secretary and division of licensing services on
8 such rules and regulations pertaining to curriculum and testing require-
9 ments.

10 2. a. An apprentice shall register with the division of licensing
11 services for a one-year natural hair care and braiding apprentice
12 license. Upon application, the participating appearance enhancement
13 business salon where such training shall occur shall be listed. Such
14 license shall be renewable for an additional one year, if necessary to
15 complete the required mandatory educational courses.

16 b. Each apprentice license issued as provided in this section shall be
17 posted in a conspicuous place where such apprentice is actually engaged
18 in the practice of natural hair care and braiding as an apprentice.

19 3. A mandatory one hundred hour online, in-person or hybrid course of
20 study shall be required in conjunction with this apprenticeship program
21 from an accredited school approved by the New York state division of
22 licensing services in the areas of public health and safety, science and
23 sanitary practices, alopecia and scalp disorders, and ergonomics for
24 overall health and safety. Additionally, a natural hair care and braid
25 styling course in the theory and proper procedures for braiding, twist-
26 ing, locking and weaving techniques with demonstrations and hands-on
27 training shall be required.

28 4. Upon completion of the requirements of this section, the apprentice
29 shall be eligible to apply to take a New York state natural hair care
30 and braiding practical examination. Upon passing such New York state
31 practical examination, such apprentice shall receive a natural hair care
32 and braiding license.

33 § 408-d. Senior natural care and braiding specialist. 1. A senior
34 natural hair care and braiding specialist shall be licensed in natural
35 hair care and demonstrate advanced expertise in the care, styling and
36 maintenance of all natural hair types and textures.

37 2. Such senior status may be applied for following advanced certif-
38 ication as determined by the department but shall at a minimum include
39 additional courses of study in which such curriculum is a minimum of one
40 hundred hours and a specialized examination.

41 3. Such specialist shall be employed by a licensed appearance enhance-
42 ment business in the state of New York.

43 § 10. Subdivision 1 of section 409 of the general business law, as
44 amended by section 2 of part Y of chapter 60 of the laws of 2011, is
45 amended to read as follows:

46 1. The non-refundable fee for an application for a license to engage
47 in the practice of nail specialty, waxing, natural hair [styling] care
48 and braiding, esthetics or cosmetology, shall be forty dollars initially
49 and for each renewal thereof the fee shall be forty dollars; the fee for
50 a temporary license and each renewal shall be ten dollars.

51 § 11. Paragraph a of subdivision 2 of section 410 of the general busi-
52 ness law, as amended by chapter 80 of the laws of 2015, is amended to
53 read as follows:

54 a. The secretary may issue an order directing the cessation of any
55 activity related to nail specialty, waxing, natural hair [styling] care
56 and braiding, esthetics or cosmetology for which a license is required

1 by this article upon a determination that a person, partnership, limited
2 liability company or business corporation, engaging in the business or
3 occupation of, or holding [~~himself, herself~~] themselves or itself out as
4 or acted, temporarily or otherwise, as a nail specialist, natural hair
5 [~~stylist~~] care and braiding specialist, esthetician or cosmetologist
6 within this state without a valid license being in effect. The secretary
7 shall, before making such determination and order, afford such person,
8 partnership, limited liability company or business corporation an oppor-
9 tunity to be heard in person or by counsel in reference thereto in an
10 adjudicatory proceeding held pursuant to section four hundred eleven of
11 this article as applicable.

12 § 12. Subdivision 1 of section 412 of the general business law, as
13 amended by chapter 80 of the laws of 2015, is amended to read as
14 follows:

15 1. The practice of nail specialty, waxing, natural hair [~~styling~~] care
16 and braiding, esthetics or cosmetology without a license or while under
17 suspension or revocation, or in violation of an order directing the
18 cessation of unlicensed activity issued by the secretary pursuant to
19 section four hundred ten or four hundred eleven of this article, is a
20 violation and is subject to a civil penalty of up to five hundred
21 dollars for the first violation; one thousand dollars for a second such
22 violation; and two thousand five hundred dollars for a third violation
23 and any subsequent violation.

24 § 13. This act shall take effect on the sixtieth day after it shall
25 have become a law.